



A COMMUNITY OF CHOICE

PLANNING AND DEVELOPMENT SERVICES

URBAN PLANNING OFFICE

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GRANT AWARD RESOLUTION STAFF REPORT

Historic Preservation Ordinance Update Grant

RESOLUTION: First Reading, April 8, 2013
Finance Committee, April 15, 2013
Second Reading, April 22, 2013

PREPARED BY: Jim Flesher, Senior Planner

RECOMMENDATION: The Urban Planning Office recommends acceptance of the grant.

The Wyoming State Historic Preservation Office (SHPO) has approved an application for a Certified Local Government (CLG) grant to fund hiring a consultant to help update the City's regulations regarding preservation of historic buildings. With this grant, staff hopes to present a draft ordinance for the Governing Body's consideration by the end of 2013.

Chapter 2.64 of the Cheyenne City Code was adopted in or around 1984 and has not been updated since that time.

The section most in need of updating is the criteria for approval of demolition of historic structures and contributing structures within historic districts in Chapter 2.64. Demolition of such structures requires prior approval of the Cheyenne Historic Preservation Board (CHPB). The only guidance or criteria for approving demolition permits is that "the board's decision to grant or deny the application shall reflect consideration of the factors set forth in Section 2.64.020, legislative intent, of this chapter, which defines the board's function." The legislative intent section includes the following:

1. Effect and accomplish the protection, enhancement and perpetuation of such areas, buildings, structures or other features which represent or reflect elements of the city's cultural, social, economic, political and architectural history;
2. Safeguard the city's historic, aesthetic and cultural heritage, as embodied and reflected in such areas, buildings, structures or other features;
3. Stabilize and improve property values in such districts;
4. Foster civic pride in the beauty and noble accomplishments of the past;
5. Protect and enhance the city's attractions to tourists and visitors and the support and stimulus to business and industry thereby provided;
6. Strengthen the economy of the city; and
7. Promote the use of historic districts and landmarks for the education, pleasure and welfare of the people of the city.

Planning staff and the City Attorney's Office feel these criteria are too subjective and do not adequately consider several potential factors such as cost to rehabilitate and maintain or move the structure; uniqueness and value of the contribution of the structure to the City or district; zoning and permitted uses on the property; and the proposed future use of the property. Further, the CHPB is charged with both advocating for and promoting preservation of historic structures and serving as a quasi-judicial, impartial review board for demolition of historic structures, and appeals of the CHPB's decisions are currently the purview of the Building Code Board of Appeals, which typically only reviews issues relating building codes.

The project will also consider how other preservation related tools might fit into the ordinance in the future and work to create a framework that can be modified over time to adapt to new goals for preservation.

CLG grants are 60 percent federally funded with a 40 percent match; however, the value of staff and volunteer time is allowed to be counted for the required match, as is the value of meeting space provided for public meetings. The award amount is \$12,000.

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION AUTHORIZING THE MAYOR AND CITY CLERK TO EXECUTE A STATE HISTORIC PRESERVATION OFFICE CERTIFIED LOCAL GOVERNMENT (CLG) GRANT AGREEMENT TO UPDATE THE CITY’S HISTORIC PRESERVATION ORDINANCE.”

WHEREAS, Section 2.64.020(A) of the Cheyenne City Code provides as follows: “The governing body recognizes that many areas, improvements and landscape features have historic character or special historical or aesthetic interest or value and many improvements representing the finest architectural products or distinct periods in the history of Cheyenne. It is declared a matter of public policy that the protection, enhancement and perpetuation of areas, improvements and landscape features having historic character or special historical or aesthetic interest or value is a public necessity and is required in the interest of the people.”; and

WHEREAS, according to the National Park Service, “the CLG Program integrates local governments with the national historic preservation program through activities that strengthen decision-making regarding historic places at the local level”; and

WHEREAS, according to the State Historic Preservation Office (SHPO), “the Wyoming SHPO strives to help local communities achieve their preservation goals, for it is at the local level that preservation efforts are often the most effective”; and

WHEREAS, the City’s historic preservation regulations were first adopted in the early 1980s and are in need of review and updating; and

WHEREAS, SHPO has awarded the City of Cheyenne Historic Preservation Board a grant in the amount of \$12,000 in order to fund a project designed to draft an update to the City’s regulations relating to preservation of historic structures with the help of a consultant and input from the Historic Preservation Board and staff for the Governing Body’s consideration.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, Wyoming, that the City of Cheyenne is hereby authorized to accept the said grant award in the amount of \$12,000.00 from the SHPO to be used solely for the Historic Preservation Ordinance Update project.

BE IT FURTHER RESOLVED that the Mayor and City Clerk are authorized to execute all documents relating to the grant upon approval of this resolution.

PRESENTED, READ, AND ADOPTED ON THIS _____ DAY OF _____, 2013.

Richard L. Kaysen, Mayor

SEAL:

ATTEST:

Carol Intlekofer, City Clerk